

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:

Omnis Pleasants, LLC¹

Debtor.

)
) Chapter 11
)
) Case No. 26-11169 (KBO)
)
) **Hearing Date:**
) **September 3, 2026 at 1:00 p.m. (ET)**
)
) **Objection Deadline:**
) **August 19, 2026 at 4:00 p.m. (ET)**
)

**DEBTOR’S MOTION FOR ENTRY OF AN ORDER (I) AUTHORIZING THE
DEBTOR TO REDACT CERTAIN PERSONALLY IDENTIFIABLE INFORMATION
FROM THE CREDITOR MATRIX, SCHEDULES AND STATEMENTS, AND
OTHER SIMILAR PLEADINGS, AND (II) GRANTING RELATED RELIEF**

Omnis Pleasants, LLC, d/b/a Pleasants Power Station, as debtor in possession (the “**Debtor**”) in the above-captioned chapter 11 case, respectfully states the following in support of this motion (this “**Motion**”):

RELIEF REQUESTED

1. The Debtor seeks entry of an order (the “**Proposed Order**”), substantially in the form annexed hereto as **Exhibit A**, (i) authorizing the Debtor to redact from its creditor matrix (the “**Creditor Matrix**”), schedules of assets and liabilities and statements of financial affairs (the “**Schedules and Statements**”), and other similar documents, certain personally identifiable information, including residential addresses, for current and former employees, officers, directors, and any other individuals (collectively, the “**Confidential Information**”), and (ii) directing that the Confidential Information not be made available to anyone without the prior written consent of the Debtor, other than the Court (as defined below), the Office of the United States Trustee for the

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

District of Delaware (the “**U.S. Trustee**”), counsel to any official committee appointed in the chapter 11 case, and counsel to TRAG LLC and RG Energy LLC (the “**Prepetition Secured Parties**”), provided that such parties shall maintain the Confidential Information as strictly confidential.

JURISDICTION AND VENUE

2. The United States Bankruptcy Court for the District of Delaware (the “**Court**”) has jurisdiction over this matter pursuant to 28 U.S.C. §§ 157 and 1334(b) and the *Amended Standing Order of Reference* from the United States District Court for the District of Delaware dated February 29, 2012 (the “**Standing Order**”).

3. This is a core proceeding pursuant to 28 U.S.C. § 157(b)(2). Pursuant to Rule 9013-1(f) of the Local Rules of the United States Bankruptcy Court for the District of Delaware (the “**Local Rules**”), the Debtor consents to the entry of a final order by the Court in connection with this Motion to the extent that it is later determined that the Court, absent consent of the parties, cannot enter final orders or judgments in connection herewith consistent with Article III of the United States Constitution.

4. Venue is proper before the Court pursuant to 28 U.S.C. §§ 1408 and 1409.

5. The statutory and legal predicates for the relief requested herein are sections 107(b) of title 11 of the United States Code (the “**Bankruptcy Code**”), Rule 9018 of the Federal Rules of Bankruptcy Procedure (the “**Bankruptcy Rules**”), and Local Rule 9018-1(d).

BACKGROUND

6. On July 26, 2026 (the “**Petition Date**”), the Debtor commenced a voluntary case under chapter 11 of the Bankruptcy Code (the “**Chapter 11 Case**”). Pursuant to sections 1107(a) and 1108 of the Bankruptcy Code, the Debtor continues to operate its business and manage its financial affairs as a debtor in possession.

7. As of the date hereof, no request for the appointment of a trustee or examiner has been made, nor has any statutory committee been appointed or designated, in the Chapter 11 Case.

8. Additional information regarding the Debtor's business, its capital structure, and the circumstances leading to the filing of the Chapter 11 Case is set forth in the *Declaration of David Hindman, as Chief Executive Officer of Omnis Pleasants, LLC, d/b/a Pleasants Power Station, in Support of Chapter 11 Petition and First Day Motions* [Docket No. 10] (the "**First Day Declaration**").²

BASIS FOR RELIEF

9. Although the public has a common law "right of access to judicial proceedings and records," *In re Cendant Corp.*, 260 F.3d 183, 192 (3d Cir. 2001), the Bankruptcy Code requires courts, in appropriate circumstances, to protect certain information by limiting the public's access, placing papers under seal, or otherwise entering orders to prohibit the dissemination of sensitive information. *See Cendant*, 260 F.3d 194 (the public's right of access "is not absolute") (quoting *Littlejohn v. BIC Corp.*, 851 F.2d 673, 678 (3d Cir. 1988)); *Leucadia, Inc. v. Applied Extrusion Tech., Inc.*, 998 F.2d 157, 165 (3d Cir. 1993) ("Although the right of access is firmly entrenched, so also is the correlative principle that the right is not absolute.") (internal quotation marks omitted).

10. Indeed, in proceedings under the Bankruptcy Code, the limits on the public's right of access are a matter of statute. *See* 11 U.S.C. § 107(b). Specifically, section 107(b) provides that "[o]n request of a party in interest, the bankruptcy court shall . . . protect an entity with respect to a trade secret or confidential research, development, or commercial information" 11 U.S.C.

² Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the First Day Declaration.

§ 107(b)(1). Bankruptcy Rule 9018 implements section 107(b) by providing that “[o]n motion or on its own, the court may, with or without notice, issue any order that justice requires to (1) protect the estate or any entity regarding a trade secret or other confidential research, development, or commercial information[.]” Fed. R. Bankr. P. 9018.

11. In addition, Local Rule 9018-1(d) requires any party who seeks to file documents under seal to file a motion to that effect. Del. Bankr. L.R. 9018-1(d). A party filing such a motion is not required to demonstrate “good cause” to file the document under seal or make a showing of “extraordinary circumstances or compelling need.” *Video Software Dealers Ass’n v. Orion Pictures Corp. (In re Orion Pictures Corp.)*, 21 F.3d 24, 27–28 (2d Cir. 1994). Rather, if the material sought to be filed under seal falls within one of the categories identified in section 107(b) of the Bankruptcy Code, “the court is required to protect a requesting party and has no discretion to deny the application.” *Id.* at 27.

12. When determining whether sensitive information qualifies for protection under section 107(b) of the Bankruptcy Code as confidential commercial information, courts have held that such information need not rise to the level of a trade secret. *Id.* at 28 (holding that section 107(b) of the Bankruptcy Code “neither equates ‘trade secret’ with ‘commercial information’ nor requires the latter to reflect the same level of confidentiality as the former.”); *see also In re Glob. Crossing Ltd.*, 295 B.R. 720, 725 (Bankr. S.D.N.Y. 2003) (recognizing that the purpose of Bankruptcy Rule 9018 is to “protect business entities from disclosure of information that could reasonably be expected to cause the entity commercial injury”). Rather, if a party can demonstrate that the sensitive information is both “confidential” and “commercial” in nature, then such information falls under the protection of section 107(b) and, accordingly, must be protected from public disclosure. *Orion Pictures*, 21 F.3d at 27; *Glob. Crossing*, 295 B.R. at 725.

13. The Debtor submits that it should be authorized to redact the personally identifiable information of its employees, officers, directors, and any other individuals from public filings because the disclosure of such information poses a risk to individuals and, for that reason, the information is sensitive in nature. Among other things, such information could be used to perpetrate identity theft or locate survivors of domestic violence, harassment, or stalking. Such risk is not merely speculative. In at least one recent chapter 11 case, the abusive former partner of a debtor's employee exploited the publicly accessible creditor and employee information filed in the chapter 11 case to track the employee at her new address that had not been publicly available until then, forcing the employee to change addresses again for her safety.³ With hundreds of creditors, the Debtor cannot reasonably know with sufficient certainty whether a release of an individual creditor or equity holder's personal information could potentially jeopardize their safety.

14. Courts in this district have recently not only granted the requested relief but also stressed the importance of authorizing debtors to redact individual creditors' personally identifiable information, including home addresses in particular. In *Anna Holdings*, in overruling the objection of the U.S. Trustee to the same redaction relief proposed here, Chief Judge Sontchi stated "it's just plain common sense in 2019—soon to be 2020—to put as little information out as possible about people's personal lives to [prevent] scams. . . . So, you know, it's a real-life issue, and, of course, the issue of domestic violence is extremely important." Hr'g Tr. at 48:20–22, 49:3–5, *In re Anna Holdings*, No. 19-12551 (CSS) (Bankr. D. Del. Dec. 3, 2019). Similarly, in *Clover Technologies*, this Court overruled the U.S. Trustee's objection to the same relief, stating:

³ The incident, which took place during the first *Charming Charlie* chapter 11 proceedings in 2017, is described in the "creditor matrix motion" filed in *In re Charming Charlie Holdings, Inc.*, No. 19-11534 (CSS) (Bankr. D. Del. Jul. 11, 2019) [Docket No. 4].

[t]o me it is common sense. I don't need evidence that there is, at best, a risk of identity theft and worse a risk of personal injury from listing someone's name and address on the internet by way of the court's electronic case filing system and, of course, the claims agent's website The court can completely avoid contributing to the risk by redacting the addresses. And while there is, of course, an important right of access we routinely redact sensitive and confidential information for corporate entities and redact individual's home addresses.

Hr'g Tr. at 24:21–25, 25:9–10, *In re Clover Techs. Grp., LLC*, No. 19-12680 (KBO) (Bankr. D. Del. Jan. 22, 2020). Similarly, in *Forever 21*, in overruling the U.S. Trustee's objection, Judge Gross noted that “[w]e live in a new age in which the theft of personal identification is a real risk, as is injury to persons who, for personal reasons, seek to have their addresses withheld.” Hr'g Tr. at 60:22–25, *In re Forever 21, Inc.*, No. 19-12122 (KG) (Bankr. D. Del. Dec. 19, 2019).

15. The Debtor proposes to provide, on a confidential basis, unredacted versions of the Creditor Matrix, Schedules and Statements, and any other applicable filings redacted pursuant to the Proposed Order to the Court, the U.S. Trustee, counsel to any official committee appointed in the Chapter 11 Case, counsel to the Prepetition Secured Parties, and such other parties as ordered by the Court, thereby ensuring that certain parties receive fully unredacted information while safeguarding parties' safety and privacy.

16. In view of the foregoing, and given that there is minimal, if any, benefit to the public from publishing the personally identifiable information, the Debtor respectfully submits that cause exists to authorize the Debtor to redact such information. Absent such relief, the Debtor would make individuals more susceptible to identity theft and potentially jeopardize their safety without any advance notice or opportunity to opt out or take protective measures.

CONCLUSION

17. For the above reasons, the Debtor respectfully requests that the Court authorize the Debtor to redact the Confidential Information from its Creditor Matrix, Schedules and Statements, and other similar documents. To the extent that parties file responsive pleadings to this Motion or other pleadings that reference the Confidential Information, the Debtor respectfully requests that the Court order such parties to redact any such information without the need for further orders from the Court.

18. The undersigned counsel hereby certifies, pursuant to Local Rule 9018-1(d), that it would be futile for the Debtor to confer with the parties whose information is sought to be redacted because such information is so inherently sensitive and the proposed redactions are sufficiently narrow as to obviate the need for such consultation. Additionally, in accordance with Local Rule 9018-1(d), the Debtor will file publicly viewable redacted versions of the Creditor Matrix and Schedules and Statements, and any other filings redacted in accordance with the Proposed Order.

NOTICE

19. Notice of the Motion will be given to the following parties or their respective counsel, as applicable: (i) the U.S. Trustee; (ii) the parties included on the Debtor's list of thirty (30) largest unsecured creditors; (iii) the West Virginia Economic Development Authority; (iv) TRAG LLC and RG Energy LLC; (v) the United States Attorney's Office for the District of Delaware; (vi) the attorney general for the State of West Virginia; (vii) the United States Department of Justice; (viii) the Internal Revenue Service; and (ix) all parties requesting notice pursuant to Bankruptcy Rule 2002. Notice of this Motion and any order entered hereon will be served in accordance with Bankruptcy Rule 2002. In light of the nature of the relief requested

herein, the Debtor submits that due and proper notice has been given under the circumstances, and that no other or further notice is necessary.

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WHEREFORE, the Debtor respectfully requests entry of the Proposed Order, substantially in the form attached hereto as **Exhibit A**, (a) granting the relief requested herein and (b) granting such other relief as the Court may deem just and appropriate under the circumstances.

Dated: August 3, 2026

/s/ James C. Diver

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*Proposed Co-Counsel to the Debtor and
Debtor in Possession*

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:

Omnis Pleasants, LLC¹

Debtor.

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NOTICE OF MOTION

PLEASE TAKE NOTICE that the above-captioned debtor (the “**Debtor**”) has filed the *Debtor’s Motion for Entry of an Order (I) Authorizing the Debtor to Redact Certain Personally Identifiable Information from the Creditor Matrix, Schedules and Statements, and Other Similar Pleadings, and (II) Granting Related Relief* (the “**Motion**”) with the United States Bankruptcy Court for the District of Delaware (the “**Court**”).

PLEASE TAKE FURTHER NOTICE that any responses or objections to the Motion must be filed on or before **August 19, 2026 at 4:00 p.m. (ET)** (the “**Objection Deadline**”) with the United States Bankruptcy Court for the District of Delaware, Wilmington, Delaware 19801. At the same time, you must serve a copy of the objection or response upon the undersigned counsel to the Debtor so as to be received on or before the Objection Deadline.

PLEASE TAKE FURTHER NOTICE THAT A HEARING TO CONSIDER APPROVAL OF THE MOTION IS SCHEDULED FOR **SEPTEMBER 3, 2026 AT 1:00 P.M. (ET)** BEFORE THE HONORABLE KAREN B. OWENS, IN THE UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF DELAWARE, 824 N. MARKET STREET, 6TH FLOOR, COURTROOM NO. 3, WILMINGTON.

PLEASE TAKE FURTHER NOTICE THAT IF NO OBJECTIONS OR RESPONSES TO THE MOTION ARE TIMELY FILED IN ACCORDANCE WITH THIS NOTICE, THE COURT MAY GRANT THE RELIEF REQUESTED IN THE MOTION WITHOUT FURTHER NOTICE OR A HEARING.

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

Date: August 3, 2026

/s/ James C. Diver

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*Proposed Co-Counsel to the Debtor and
Debtor in Possession*

EXHIBIT A

Proposed Order

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re: Omnis Pleasants, LLC ¹ Debtor.	)))))))	Chapter 11 Case No. 26-11169 (KBO) Ref. Docket No. __
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**ORDER (I) AUTHORIZING THE DEBTOR TO REDACT
CERTAIN PERSONALLY IDENTIFIABLE INFORMATION FROM
THE CREDITOR MATRIX, SCHEDULES AND STATEMENTS, AND
OTHER SIMILAR PLEADINGS, AND (II) GRANTING RELATED RELIEF**

Upon the motion (the “**Motion**”)² filed by the above-captioned debtor and debtor in possession (the “**Debtor**”), seeking entry of an order (this “**Order**”), pursuant to section 107(b) of the Bankruptcy Code, Bankruptcy Rule 9018, and Local Rule 9018-1(d), (i) authorizing the Debtor to redact the Confidential Information from its Creditor Matrix, Schedules and Statements, and other similar documents, and (ii) directing that the Confidential Information not be made available to anyone without the prior written consent of the Debtor; and due and proper notice of the Motion having been given; and it appearing that no other or further notice of the Motion is required except as otherwise provided herein; and it appearing that this Court has jurisdiction to consider the Motion in accordance with 28 U.S.C. §§ 157 and 1334 and the Standing Order; and it appearing that this is a core proceeding pursuant to 28 U.S.C. § 157(b)(2); and it appearing that venue of this proceeding and the Motion is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having reviewed the Motion and having heard the statements in support of the relief requested in the Motion at a hearing before this Court, if any; and it appearing that the relief requested in the

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² Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the Motion.

Motion and provided for herein is in the best interest of the Debtor, its estate, and its creditors; and after due deliberation and sufficient cause appearing therefore,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** as set forth herein.
2. The Debtor is authorized to redact the Confidential Information from the Creditor Matrix, the Schedules and Statements, and any similar documents; *provided* that the Debtor shall provide this Court, the Office of the United States Trustee for the District of Delaware, counsel to any official committee of creditors appointed in the Chapter 11 Case, and counsel to the Prepetition Secured Parties, with unredacted versions of such documents. The Confidential Information may not be made available to any other party without the consent of the Debtor or further order of this Court.
3. Except as ordered by this Court, any filings that disclose any of the Confidential Information shall be filed under seal in accordance with this Order and served only on those parties authorized in paragraph 2 above.
4. Nothing in this Order shall waive or otherwise limit the service of any document upon or the provision of any notice to any individual solely because such individual's personally identifiable information is sealed or redacted pursuant to this Order. Service of all documents and notices upon individuals whose personally identifiable information is sealed or redacted pursuant to this Order shall be made to their residential addresses and confirmed in the corresponding certificate of service. The Debtor shall provide the redacted information to any party in interest that files a motion that indicates the reason such information is needed and that, after notice and a hearing, is granted by this Court. Each party receiving an unredacted copy of the Creditor Matrix, the Schedules and Statements, or any other document containing Confidential Information shall

keep such Confidential Information confidential and shall not disclose such information to any other person or entity unless otherwise required by applicable law or further order of this Court.

5. This Order shall be immediately effective and enforceable upon its entry.

6. The Debtor is authorized to take all actions necessary or appropriate to effectuate the relief granted pursuant to this Order.

7. This Court shall retain jurisdiction to hear and determine all matters arising from or related to the implementation, interpretation, or enforcement of this Order.